

STATE OF NEW YORK

56--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. FERNANDEZ, CLEARE, JACKSON, MAY, RIVERA, SALAZAR -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to establishing a drug checking program including requirements for enhanced drug checking service delivery and public health surveillance

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public health law is amended by adding a new section
2 3309-c to read as follows:

3 § 3309-c. Drug checking services program. 1. For purposes of this
4 section, the following terms shall have the following meanings:

5 (a) "Enhanced drug checking services" means the utilization of all
6 forms of drug testing equipment including complex technology or equip-
7 ment designed to analyze substances and provide results at point of
8 testing or point of care, which may include but is not limited to, chem-
9 ical screening devices such as infrared spectrophotometers, raman spec-
10 trophotometers, or ion mobility spectrometers.

11 (b) "Public health surveillance" means the continuous and systematic
12 collection, analysis, and interpretation of data needed for the plan-
13 ning, implementation, and evaluation of public health initiatives.
14 Public health surveillance may be used for the following purposes:

15 (i) as an early warning system for impending public health emergen-
16 cies;

17 (ii) to document the impact of an intervention;

18 (iii) to track progress towards specific goals;

19 (iv) to monitor and clarify the epidemiology of health outcomes; and

20 (v) to inform the public health policy and practices.

21 2. The department shall:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (a) establish a program to provide, or authorize a local government or
2 other entity to provide enhanced drug checking services to assist indi-
3 viduals in determining whether a drug or controlled substance contains
4 contaminants, toxic substances, or hazardous compounds; and

5 (b) establish public health surveillance of the unregulated drug
6 supply to monitor trends and the impact on health outcomes and increase
7 public awareness of new substances in the unregulated drug supply.

8 3. Enhanced drug checking services programs shall follow all policies
9 established by the department and submit data in accordance with poli-
10 cies established by the department.

11 4. The department shall develop policies and procedures to:

12 (a) authorize enhanced drug checking service delivery;

13 (b) utilize enhanced drug checking technology for public health
14 surveillance;

15 (c) develop requirements for technician training to ensure accurate
16 point of testing and point of care results;

17 (d) identify appropriate equipment to use; and

18 (e) establish reporting processes.

19 5. Employees, contractors, and volunteers of the department, direc-
20 tors, managers, employees, contractors, and volunteers of an organiza-
21 tion providing drug checking services, owners of properties where drug
22 checking services occur, local governments or other entities authorized
23 by the department, and individuals presenting drugs or substances for
24 checking, acting in the course and scope of employment or engaged in
25 good faith in the provision of enhanced drug checking services, in
26 accordance with established protocols, shall not be subject to:

27 (a) arrest, charges, or prosecution pursuant to this article or any
28 violation or misdemeanor, including for attempting, aiding and abetting,
29 or conspiracy to commit a violation or misdemeanor pursuant to article
30 two hundred twenty of the penal law; or

31 (b) a civil or administrative penalty or liability of any kind, or
32 disciplinary action by a professional licensing board, for conduct
33 relating to the provision of enhanced drug checking services unless such
34 conduct was performed in a negligent manner or in bad faith.

35 6. The department and local governments or entities authorized by the
36 department shall not collect, maintain, use, or disclose any personal
37 information relating to an individual from whom the department, local
38 government, or entity receives any drug or substance for checking or
39 disposal.

40 7. The result of any test carried out by the department or an author-
41 ized local government or entity in relation to any drug or substance
42 presented for checking shall not be admissible as evidence in any crimi-
43 nal or civil proceedings against the individual from whom the drug or
44 substance was received, unless submitted by such individual.

45 § 2. This act shall take effect immediately; provided, however, that
46 subdivisions one, two, three and four of section 3309-c of the public
47 health law, as added by section one of this act, shall take effect on
48 the first of April next succeeding the fiscal year in which this act
49 shall have become a law. Effective immediately, the addition, amendment,
50 and/or repeal of any rule or regulation necessary for the implementation
51 of this act on its effective date are authorized to be made and
52 completed on or before such effective date.